

MATTER LISTED ON 11.08.2026

STATE:
SECTION: XVII

IN THE SUPREME COURT OF INDIA
(CIVIL/APPELLATE/JURISDICTION)

Diary No. - 35534/2025

IN
C.A. No. 010046 - / 2025

IN THE MATTER OF:
MAHARASHTRA STATE ELECTRICITY
DISTRIBUTION COMPANY LIMITED

...APPELLANT

Versus

MAHARASHTRA ELECTRICITY
REGULATORY COMMISSION & ANR.

...RESPONDENTS

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Additional Affidavit on behalf of Appellant i.e.
Maharashtra State Electricity Distribution Company
Limited alongwith Annexure A1-A4

1.....

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PROOF OF SERVICE"

1) TRILEGAL ADVOCATES ON RECORD, aor E-MAIL: trilegal.aor@trilegal.com

2) SAHIL CHANDRA, AOR E-MAIL: sahilc4office@gmail.com

5.....

6.....

7.....

8.....

Note: spare copies are correct

Vikash Kumar Jha

Date: 10.08.2026.

(CYRIL AMARCHAND MANGALDAS) AOR

Advocate for the Appellant

CODE:2238

OFFICE ADDRESS: LEVEL 1 AND 2, MAX TOWER, C-001/A,

SECTOR 16 B, NOIDA-201301, UTTAR PRADESH, INDIA OFFICE PHONE:+91120 669 9000, F+91 120 669 9009

E-MAIL: cam.aor@cyrilshroff.com M-8802291617

**IN THE HON'BLE SUPREME COURT OF INDIA
CIVIL APPELLATE JURISDICTION
CIVIL APPEAL NO. 10046 OF 2025**

IN THE MATTER OF:

Maharashtra State Electricity
Distribution Company Limited

...APPELLANT

VERSUS

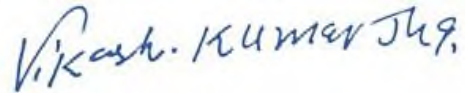
Maharashtra Electricity
Regulatory Commission & Anr.

...RESPONDENTS

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Filed by:



CYRIL AMARCHAND MANGALDAS (AOR)

Advocate for the Appellant

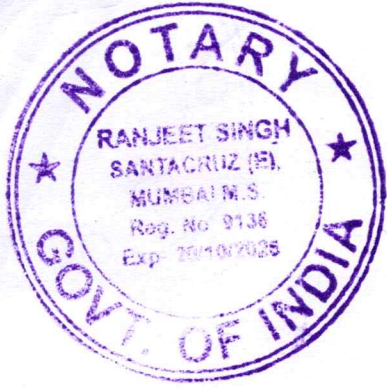
Email: cam.aor@cyrilshroff.com

Code: 2238

Mobile: 8802291617

Date: 10.08.2026

Place: New Delhi



IN THE SUPREME COURT OF INDIA
CIVIL APPELLATE JURISDICTION

CIVIL APPEAL NO. 10046 OF 2025

IN THE MATTER OF:

Maharashtra State Electricity

Distribution Company Limited

...APPELLANT

VERSUS

Maharashtra Electricity Regulatory

Commission & Anr.

...RESPONDENTS

**Additional Affidavit on behalf of Appellant i.e. Maharashtra State
Electricity Distribution Company Limited**

I, Sandeep Suresh Patil, S/o Sh. Suresh Patil, aged about 45 years, working as Chief Engineer (Power Purchase), authorized representative of the Appellant having office at MSEDCL, Prakashgad, Plot No. G-9, Anant Kanekar Marg, Bandra (East), Mumbai – 400 051, presently in New Delhi, do hereby solemnly declare and affirm as under:

1. I am the Authorised Representative of the Appellant company in the present Civil Appeal before this Hon'ble Court and having perused the records of the case and being well conversant with the facts and



circumstances of the case, I am competent to swear and depose the present additional affidavit ("**Additional Affidavit**").

2. I say that in furtherance of the Impugned Judgment dated 08.05.2025 passed by the Ld. Appellate Tribunal for Electricity ("**Appellate Tribunal**") in Appeal No. 345 of 2021, the Respondent No. 2 herein, i.e., Rattan India Power Limited ("**RIPL**") has instituted remand proceedings being, Case No. 171/AD/2025 before the Respondent No. 1 Commission, namely, Ld. Maharashtra Electricity Regulatory Commission ("**Ld. MERC**"), which is currently pending adjudication.

Copies of all the daily orders passed by the Ld. MERC in Case No. 171/AD/2025 are annexed hereto and marked as **Annexure A-1 from pages 6 to 13.**

3. I say that in the said proceedings before the Ld. MERC, RIPL based on its own assumptions has computed and filed its cumulative claim for Rs. 819.25crore (including carrying cost), of which Rs. 566.86 crore (including carrying cost) is claimed in respect of increase in Surface Transportation Charges and Sizing/Crushing charges; and Rs. 252.39 crore (including carrying cost) is claimed in respect of Fly Ash Notification, in the following manner.

Surface Transportation charges and Sizing/Crushing charges

Particulars	Sizing charges (INR Cr.)	Surface Transportation (INR Cr.)	Total Impact (INR Cr.)
Principal (June 2013-July 2025)	138.68	152.00	290.68
Carrying Cost (Up to 15.08.2025)	168.03	108.15	276.18
Total	306.71	260.15	566.86

Fly Ash Transportation

Particulars	Ash Transportation (INR Cr.)	Incidental Expenses (INR Cr.)	Total Impact (INR Cr.)
Principal (August 2021 to June 2025)	87.60	82.85	169.85
Carrying Cost (Up to 15.09.2025)	39.69	42.85	82.54
Total	127.29	125.10	252.39



Copies of the summary of the above claims as submitted by RIPL are collectively annexed hereto and marked as **Annexure A-2** from pages 14 to 15.

4. I say that the aforesaid claim of Respondent No. 2 is up to the periods mentioned in the table above. Further, in case these claims are allowed, as per the details furnished by Respondent No. 2, there is likely to be an alleged monthly recurring future financial impact.
5. I say that MSEDCL has contested the aforesaid alleged claims of RIPL and computations thereof by way of appropriate pleadings before the Ld. MERC in Case No. 171/AD/2025, determination of which is currently pending adjudication.
6. I state that MSEDCL, without prejudice to its rights and contentions has made an ad-hoc payment of Rs. 44.73 crore on 27.04.2026 to RIPL towards fly ash transportation, pursuant to requests made by RIPL vide its letters dated 23.12.2025 and 13.01.2026 citing allegedly severe cash flow. It is further submitted that the said payment has been made without admitting or acknowledging any liability whatsoever, and in fact with a specific denial of the alleged claims of RIPL. The said payment is subject to the final adjudication and outcome of the present Civil Appeal before this Hon'ble Court .

A copy of the letters dated 23.12.2025 and 13.01.2026 issued by RIPL are collectively annexed hereto and marked as **Annexure A-3** from pages 16 to 19.



A copy of the letter dated 08.05.2026 issued by MSEDCL to RIPL is annexed hereto and marked as **Annexure A-4** **from pages 20 to 21.**

7. I say that this additional affidavit is bona fide and filed in the interest of justice.

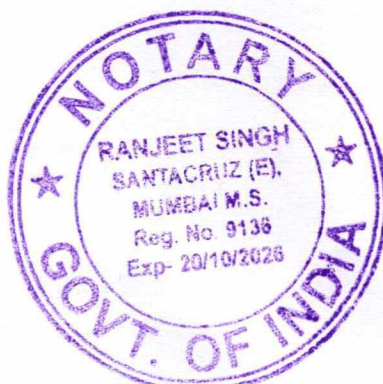
[Signature]

DEPONENT

Chief Engineer (Power Purchase)
M. S. E. D. C. L.

VERIFICATION:

I, the Deponent above-named, do hereby verify and state on this 10th day of August, 2026 that the facts stated hereinabove are true and correct to the best of my knowledge and are based on the records maintained by the Appellant Company, and legal advice received and believed by me to be true. No part therein is false and nothing material has been concealed therefrom.



[Signature]

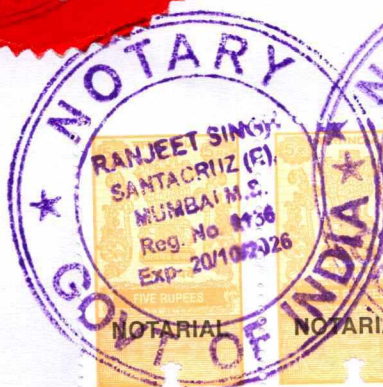
DEPONENT

Chief Engineer (Power Purchase)
M. S. E. D. C. L.

BEFORE ME

[Signature]

RANJEET SINGH
M.Sc., LL.B.
NOTARY, SANTACRUZ (E)
MUMBAI MAHARASHTRA
(GOVT. OF INDIA)



10 AUG 2026

Before the
MAHARASHTRA ELECTRICITY REGULATORY COMMISSION
World Trade Centre, Centre No.1, 13th Floor, Cuffe Parade, Mumbai 400005
Tel. 022 6987 6666
Email: mercindia@merc.gov.in
Website: www.merc.gov.in

Date: 20 May, 2026

CORAM: Valsa Nair Singh, Chairperson
Anand M. Limaye, Member
Surendra J. Biyani, Member

Case No. 171 of 2025

Petition of RattanIndia Power Limited under Section 86 of EA, 2003 pursuant to judgment dated 08 May 2025 passed by the Hon'ble Appellate Tribunal for Electricity in Appeal No. 345 of 2021.

RattanIndia Power Limited (RIPL)Petitioner

V/s

Maharashtra State Electricity Distribution Company Limited (MSEDCL)Respondent

Appearance:

For the Petitioner Mr. Girik Bhalla (Adv.)

For the Respondent Mr. Vishal Binod (Adv.)

Daily Order

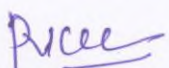
1. Heard the Advocates for Petitioner and Respondent.
2. The advocate of the Respondent stated that the Civil Appeal against the APTEL judgment dated 08 May 2025 in Appeal No. 345 of 2021, based on which the present remand proceeding is initiated, is listed today (i.e. 20 May 2026), and the hearing is ongoing before the Hon'ble Supreme Court. Therefore, he requested an adjournment. Petitioner did not object to such a request.
3. Considering the request, the Commission adjourned the matter.

The next hearing date will be communicated by the Secretariat of the Commission, based on the Petitioner's and the Respondent's submissions on the outcome of the Hon'ble Supreme Court Appeal in Appeal No. 345 of 2021.

Sd/-
(Surendra J. Biyani)
Member

Sd/-
(Anand M. Limaye)
Member

Sd/-
(Valsa Nair Singh)
Chairperson


(Dr Prafulla S. Varhade)
Secretary



Before the
MAHARASHTRA ELECTRICITY REGULATORY COMMISSION
 World Trade Centre, Centre No.1, 13th Floor, Cuffe Parade, Mumbai 400005
 Tel. 022 6987 6666
 Email: mercindia@merc.gov.in
 Website: www.merc.gov.in

Date: 2 December 2025

CORAM: Sanjay Kumar, Chairperson
 Anand M. Limaye, Member
 Surendra J. Biyani, Member

Case No. 171 of 2025

Petition of RattanIndia Power Limited under Section 86 of EA, 2003 pursuant to judgment dated 08 May 2025 passed by the Hon'ble Appellate Tribunal for Electricity in Appeal No. 345 of 2021.

RattanIndia Power Limited. (RIPL)

.....Petitioner

V/s

Maharashtra State Electricity Distribution Company Limited (MSEDCL)Respondent

Appearance:

For the Petitioner

..... Shri. Vishrov Mukerjee (Adv.)

For the Respondent

..... Shri. Vishal Binod (Adv.)

Daily Order

1. Heard the Advocates for Petitioner and Respondent.
2. Advocate of MSEDCL stated that on 19 November 2025 Petitioner submitted 6000 pages of details, since the data is immense it requires time to review. Therefore, he requested additional time to file detailed reply.
3. Considering the request, the Commission adjourned the hearing. MSEDCL to file its reply within 4 weeks. Petitioner may file Rejoinder, if any, within a week thereafter.

After the receipt of the submissions from the Parties, the next date of the hearing will be communicated by the Secretariat of the Commission.

Sd/-
 (Surendra J. Biyani)
 Member

Sd/-
 (Anand M. Limaye)
 Member

Sd/-
 (Sanjay Kumar)
 Chairperson


 (Dr. Rajendra G. Ambekar)
 Secretary



Before the
MAHARASHTRA ELECTRICITY REGULATORY COMMISSION
 World Trade Centre, Centre No.1, 13th Floor, Cuffe Parade, Mumbai 400005
 Tel. 022 6987 6666
 Email: mercindia@merc.gov.in
 Website: www.merc.gov.in

Date: 31 October, 2025

CORAM: Sanjay Kumar, Chairperson
 Anand M. Limaye, Member
 Surendra J. Biyani, Member

Case No. 171 of 2025

Petition of RattanIndia Power Limited under Section 86 of EA, 2003 pursuant to judgment dated 08 May 2025 passed by the Hon'ble Appellate Tribunal for Electricity in Appeal No. 345 of 2021.

RattanIndia Power Limited. (RIPL)

.....Petitioner

V/s

Maharashtra State Electricity Distribution Company Limited (MSEDCL)Respondent

Appearance:

For the Petitioner

..... Shri. Vishrov Mukerjee (Adv.)

For the Respondent

..... Shri. Vishal Binod (Adv.)

Daily Order

1. Heard the Advocates for Petitioner and Respondent.
2. Advocate of the Petitioner stated that as directed during last hearing, reconciliation of Surface transportation and Sizing/crushing charges is completed, however reconciliation of fly ash charges is in process. Therefore, MSEDCL may be directed to pay atleast 50% or 75% charges towards Surface transportation and Sizing/crushing charges.
3. Advocate of MSEDCL reiterated that partial information is submitted by RIPL, therefore RIPL may be directed to share all the documentary evidence to substantiate its claims.
4. Considering above submissions, the Commission directs RIPL to provide necessary information/ document to MSEDCL within 2 weeks. Both parties to reconcile the amount of change in law claims, thereafter, submit their reply/rejoinder, if any.

After the receipt of the submissions from the Parties, the next date of the hearing will be communicated by the Secretariat of the Commission.

Sd/-
(Surendra J. Biyani)
Member

Sd/-
(Anand M. Limaye)
Member

Sd/-
(Sanjay Kumar)
Chairperson


(Dr. Rajendra G. Ambekar)
Secretary



Before the
MAHARASHTRA ELECTRICITY REGULATORY COMMISSION
 World Trade Centre, Centre No.1, 13th Floor, Cuffe Parade, Mumbai 400005
 Tel. 022 6987 6666
 Email: mercindia@merc.gov.in
 Website: www.merc.gov.in

Date: 19 August 2025

CORAM: Sanjay Kumar, Chairperson
 Anand M. Limaye, Member
 Surendra J. Biyani, Member

Case No. 171 of 2025

Petition of RattanIndia Power Limited under Section 86 of EA, 2003 pursuant to judgment dated 08 May 2025 passed by the Hon'ble Appellate Tribunal for Electricity in Appeal No. 345 of 2021.

RattanIndia Power Limited. (RPL)

.....Petitioner

V/s

Maharashtra State Electricity Distribution Company Limited (MSEDCL)Respondent

Appearance:

For the Petitioner

..... Shri Vishrov Mukerjee (Adv)

For the Respondent

..... Shri. Vishal Binod (Adv)

Daily Order

1. Heard the Advocates for Petitioner and Respondent.
2. Advocate of the Petitioner stated that the instant Petition is for passing a consequential Order on judgment passed by the Hon'ble APTEL dated 08 May, 2025 in Appeal No. 345 of 2021. MSEDCL in its reply dated 25 July, 2025 has stated that they have filed a Civil Appeal before Hon'ble Supreme Court and also objected that Petitioner have not filed documents for reconciliation. The Commission in similar remand back matters, had directed the parties to share documents and had given one month's time to reconcile the claims. Petitioner requested the Commission to adopt similar approach in present matter.
3. Advocate of MSEDCL stated that they do not have any supporting documents for Petitioner's claim.

4. In view of the above, the Commission directs the Petitioner to share all the documentary evidence to substantiate its claims within one week with MSEDCL, both the parties to reconcile the amount within one month, thereafter, submit their reply/rejoinder, if any.

After the receipt of the submissions from the Parties, the next date of the hearing will be communicated by the Secretariat of the Commission.

**Sd/-
(Surendra J. Biyani)
Member**

**Sd/-
(Anand M. Limaye)
Member**

**Sd/-
(Sanjay Kumar)
Chairperson**


**(Dr. Rajendra G. Ambekar)
Secretary**



Before the
MAHARASHTRA ELECTRICITY REGULATORY COMMISSION
 World Trade Centre, Centre No.1, 13th Floor, Cuffe Parade, Mumbai 400005
 Tel. 022 6987 6666
 Email: mercindia@merc.gov.in
 Website: www.merc.gov.in

Date: 25 July 2025

CORAM: Sanjay Kumar, Chairperson
 Anand M. Limaye, Member
 Surendra J. Biyani, Member

Interlocutory Application No. 96 of 2025

Interlocutory Application of RattanIndia Power Limited seeking urgent listing and hearing in Case No. 171/AD/2025.

In

Case No. 171 of 2025

Petition of RattanIndia Power Limited under Section 86 of EA, 2003 pursuant to judgment dated 08.05.2025 passed by the Hon'ble Appellate Tribunal for Electricity in Appeal No. 345 of 2021.

RattanIndia Power Limited. (RPL)Petitioner

V/s

Maharashtra State Electricity Distribution Company Limited (MSEDCL)Respondent

Appearance:

For the Petitioner Shri Vishrov Mukerjee (Adv)

For the Respondent Shri. Vishal Binod (Adv)

Daily Order

1. Heard the Advocates for Petitioner and Respondent.
2. Advocate of the Petitioner stated that the instant Petition is for passing a consequential Order on judgment passed by the Hon'ble APTEL dated 08 May, 2025 in Appeal No. 345 of 2021. Therefore, he requested for urgent hearing in the Case No. 171 of 2025
3. Advocate of the Respondent stated that it has filed an Appeal against the Order passed by Hon'ble APTEL, and the Appeal is listed for hearing in the next week before the Hon'ble Supreme Court. He requested two weeks' time to file its reply.

4. The Commission noted that there is no stay on execution of the Hon'ble APTEL Judgement dated 08 May, 2025 in Appeal No. 345 of 2021. Therefore, directs MSEDCL to file its reply within 2 weeks.
5. Accordingly, IA No. 96 of 2025 in Case No. 171 of 2025 stands disposed of.

After the receipt of the submissions from the Parties, the next date of the hearing will be communicated by the Secretariat of the Commission.

**Sd/-
(Surendra J. Biyani)
Member**

**Sd/-
(Anand M. Limaye)
Member**

**Sd/-
(Sanjay Kumar)
Chairperson**


**(Dr. Rajendra G. Ambekar)
Secretary**



ANNEXURE A-2

14

Summary of Change in Law Claim on account of Increase in Sizing Charges and Surface Transportation Charges

Financial Year	Change in Law Impact		
	Sizing Charges (INR)	Surface Transportation Charges (INR)	Total Impact (INR)
FY 14	1,05,24,296	19,07,817	1,24,32,113
FY 15	3,15,35,166	1,20,29,782	4,35,64,948
FY 16	10,40,56,665	71,13,531	11,11,70,195
FY 17	3,20,55,963	34,49,675	3,55,05,638
FY 18	10,29,51,935	5,25,17,693	15,54,69,628
FY 19	9,50,60,508	8,14,65,212	17,65,25,720
FY 20	7,47,68,947	6,36,81,113	13,84,50,060
FY 21	6,47,17,183	7,21,12,846	13,68,30,028
FY 22	17,63,86,368	23,17,38,335	40,81,24,703
FY 23	19,44,25,534	25,07,60,019	44,51,85,553
FY 24	21,61,71,093	30,85,21,790	52,46,92,883
FY 25	20,83,05,358	31,91,66,218	52,74,71,575
FY 26	7,58,85,221	11,55,23,367	19,14,08,588
Total	1,38,68,44,237	1,51,99,87,397	2,90,68,31,634
Carrying Cost	1,68,03,26,610	1,08,15,18,251	2,76,18,44,862
Grand Total	3,06,71,70,847	2,60,15,05,648	5,66,86,76,495

Financial Year	Change in Law Impact		
	Sizing Charges (INR Cr.)	Surface Transportation Charges (INR Cr.)	Total Impact (INR Cr.)
FY 14	1.05	0.19	1.24
FY 15	3.15	1.20	4.36
FY 16	10.41	0.71	11.12
FY 17	3.21	0.34	3.55
FY 18	10.30	5.25	15.55
FY 19	9.51	8.15	17.65
FY 20	7.48	6.37	13.85
FY 21	6.47	7.21	13.68
FY 22	17.64	23.17	40.81
FY 23	19.44	25.08	44.52
FY 24	21.62	30.85	52.47
FY 25	20.83	31.92	52.75
FY 26	7.59	11.55	19.14
Total	138.68	152.00	290.68
Carrying Cost	168.03	108.15	276.18
Grand Total	306.72	260.15	566.87

Financial Year	Change in Law Impact (Summary)		
	Sizing Charges (INR Cr.)	Surface Transportation Charges (INR Cr.)	Total Impact (INR Cr.)
Principal	138.68	152.00	290.68
Carrying Cost (Upto 15.08.25)	168.03	108.15	276.18
Total	306.72	260.15	566.87

Change in Law claim towards utilization of Ash Expenses (INR)			
Financial Year	Transportation	Incidental	Total
FY 22	12,60,32,468	14,08,73,829	26,69,06,296
FY 23	29,49,76,393	32,46,42,422	61,96,18,815
FY 24	17,05,24,110	18,04,07,564	35,09,31,674
FY 25	20,62,16,508	14,21,79,437	34,83,95,945
FY 26	7,82,09,977	3,44,09,260	11,26,19,237
Principal (Till June'25)	87,59,59,456	82,25,12,512	1,69,84,71,968
Carrying Cost (Upto 15.09.25)	39,69,47,882	42,85,13,330	82,54,61,212
Total	1,27,29,07,338	1,25,10,25,842	2,52,39,33,180

Change in Law claim towards utilization of Ash Expenses (INR Cr.)			
Financial Year	Transportation	Incidental	Total
FY 22	12.60	14.09	26.69
FY 23	29.50	32.46	61.96
FY 24	17.05	18.04	35.09
FY 25	20.62	14.22	34.84
FY 26	7.82	3.44	11.26
Principal (Till June'25)	87.60	82.25	169.85
Carrying Cost (Upto 15.09.25)	39.69	42.85	82.55
Total till FY 2025-26	127.29	125.10	252.39

**WITHOUT PREJUDICE****Ref.:** RPL/Amravati/PPA/MSEDCL/CIL/2025-26/25**Dated:** 23.12.2025**To**

The Chief Engineer (Power Purchase)
Maharashtra State Electricity Distribution Company Limited
5th Floor, Prakashgad, Bandra (East)
Mumbai – 400051

Sub: Request for Ad hoc Payment Release**References:**

1. APTEL Judgement dated 08.05.2025 in Appeal No. 345 of 2021
2. MERC daily order dated 19.08.2025 in Petition No. 171/MP/2025
3. RPL Email dated 01.09.2025
4. MSEDCL Letter dated 13.10.2025 (Ref. No. CE/PP/RPL/33327)
5. RPL reply dated 24.10.2025 (Ref. No. RPL/Amravati/PPA/MSEDCL/CIL/2025-26/15)
6. MSEDCL Letter dated 02.12.2025 (Ref. No. CE/PP/RPL/38979)
7. RPL reply dated 03.12.2025 (Ref. No. RPL/Amravati/PPA/MSEDCL/Taxes/2025-26/20)
8. RPL reply dated 04.12.2025 (Ref. No. RPL/Amravati/PPA/MSEDCL/Taxes/2025-26/21)

Dear Sir,

This is in reference to the recent unilateral deductions amounting to Rs. 202.39 Crores effected by Maharashtra State Electricity Distribution Company Limited (“MSEDCL”) vide its letter dated 02.12.2025.

The aforesaid deductions have severely impacted RPL’s working capital position adversely affecting operations of the Plant including, inter alia, procurement of coal, payment of railway freight, disbursement of wages, and meeting operational and maintenance expenses.

Pursuant to the APTEL order dated 08.05.2025 referred as point no.1 and MERC direction referred in point no. 2 above, we have submitted all the required details for your verifications and further process of payments. We hereby most humbly request you that to manage the critical situation of hindered coal procurement as explained above, a sum of Rs. 200 Crores may kindly be released to us as an adhoc part payment on account of change in law event for increase in STC and Sizing charges.

RattanIndia Power Limited

Page 1 of 2

(CIN: L40102DL2007PLC169082)

Reg. Off. Address: A-49, Ground Floor, Road No. 4, Mahipalpur, New Delhi - 110037**Website:** www.rattanindiapower.com; **Email ID:** ir_rpl@rattanindia.com; **Phone:** 011 46611666; **Fax:** 011 46611777**RPL/4460**

RPL undertakes to refund the said amount in the event MSEDCL succeeds in Civil Appeal No. 10046 of 2025 pending before Hon'ble Supreme Court.

The above release of funds is extremely required for smooth operation of plant which shall ensure supply of 1200 MW of cheapest power to MSEDCL benefiting the ultimate consumer.

This letter is being issued without prejudice to all rights, entitlements, and contentions of RPL under PPAs and/ or in law and/ or in equity, which are hereby expressly reserved.

Thanking you and looking forward to your favourable action.

Thank you,

Your Sincerely
For **RattanIn**



(Authorized Signatory)



Copy to:

1. The Director (Commercial), MSEDCL, Mumbai
2. The Executive Director (Commercial), MSEDCL, Mumbai



WITHOUT PREJUDICE

Ref.: RPL/Amravati/PPA/MSEDCL/CIL/2025-26/28

Dated: 13.01.2026

To

The Chief Engineer (Power Purchase)
Maharashtra State Electricity Distribution Company Limited
5th Floor, Prakashgad, Bandra (East)
Mumbai – 400051

Sub: Request for Ad hoc Payment Release

References:

1. APTEL Judgement dated 08.05.2025 in Appeal No. 345 of 2021
2. MERC daily order dated 19.08.2025 in Petition No. 171/MP/2025
3. RPL Email dated 01.09.2025
4. MSEDCL Letter dated 13.10.2025 (Ref. No. CE/PP/RPL/33327)
5. RPL reply dated 24.10.2025 (Ref. No. RPL/Amravati/PPA/MSEDCL/CIL/2025-26/15)
6. MSEDCL Letter dated 02.12.2025 (Ref. No. CE/PP/RPL/38979)
7. RPL reply dated 03.12.2025 (Ref. No. RPL/Amravati/PPA/MSEDCL/Taxes/2025-26/20)
8. RPL reply dated 04.12.2025 (Ref. No. RPL/Amravati/PPA/MSEDCL/Taxes/2025-26/21)
9. RPL request dated 23.12.2025 (Ref. No. RPL/Amravati/PPA/MSEDCL/CIL/2025-26/25)

Dear Sir,

This is in continuation of our earlier request seeking release of ad hoc payment, consequent to the unilateral deductions amounting to Rs. 202.39 Crores effected by Maharashtra State Electricity Distribution Company Limited ("MSEDCL") vide its letter dated 02.12.2025.

RPL is in the process of preparing a detailed reply and comprehensive submissions in response to the submissions made by MSEDCL pursuant to the MERC Daily Order in Petition No. 171/MP/2025, including MSEDCL's letter dated 31.12.2025 (Ref. No. CE/PP/RPL/42654).

RPL respectfully submits that the expenses incurred towards Ash Transportation have been claimed under various heads, and the principal claims are briefly indicated below:

- | | |
|-----------------------------------|--------------------|
| 1. Utilisation in Low-Lying Areas | – Rs. 40.39 Crores |
| 2. Transportation to Quarry | – Rs. 40.52 Crores |
| 3. Incidental Charges | – Rs. 82.25 Crores |
| 4. Rakes, Dumpers, Others, etc. | – Rs. 6.68 Crores |

RattanIndia Power Limited

(CIN: L40102DL2007PLC169082)

Reg. Off. Address: A-49, Ground Floor, Road No. 4, Mahipalpur, New Delhi - 110037

Website: www.rattanindiapower.com; **Email ID:** ir_rpl@rattanindia.com; **Phone:** 011 46611666; **Fax:** 011 46611777

RPL/4462

However, in the interim, and without prejudice to the aforesaid submissions, RPL most respectfully requests MSEDCL to consider release of Rs. 100 Crores, considering the urgent requirement of funds for smooth and uninterrupted operation of the Plant against the above expenses claimed for Ash utilization. As communicated earlier, RPL's cash flows have been severely impacted due to the deductions effected vide MSEDCL's letter dated 02.12.2025.

RPL hereby undertakes to adjust / refund the released amount as per orders / approvals in the due course of Law.

The release of the aforesaid amount shall enable continued supply of 1200 MW of low-cost power under the PPA, thereby benefiting MSEDCL and the ultimate consumers, while also avoiding further accumulation of Carrying Cost / Late Payment Surcharge.

This letter is issued without prejudice to all rights, entitlements, and contentions of RPL under the applicable Power Purchase Agreements and/or in law and/or in equity, all of which are expressly reserved.

We request your kind consideration and look forward to your favourable action in the matter.

Yours Sincerely,

For, RattanIndia Power Limited


(Authorized Signatory)


Copy to:

1. The Director (Commercial), MSEDCL, Mumbai
2. The Executive Director (Commercial), MSEDCL, Mumbai

ANNEXURE A-3

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(A Govt. of Maharashtra Undertaking)
CIN: U40109MH2005SGC153645

MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED

Prakashgad, Plot No. G-9, Anant Kanekar Marg,
Bandra (E), Mumbai - 400 051

☎ (O) 022 -2647 4211

✉ ceppmsedcl@gmail.com | 🌐 www.mahadiscom.in

Ref: CE/PP/RPL/ **NO 7 5 5 4 3**

Date: **0 8 MAY 2026**

WITHOUT PREJUDICE

To,
M/s RattanIndia Power Ltd.,
A-49, Ground Floor, Road No.4,
Mahipalpur, New Delhi-110037

Subject: Regarding ad hoc payment made towards transportation of Fly Ash

Reference: 1. CE/PP/RPL/42654 dated 31.12.2025
2. RPL letter No.28 dated 13.01.2026

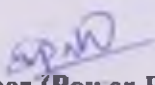
Dear Sir,

This has reference to your letter under reference (2) wherein RPL has requested for ad hoc payment towards transportation of Fly Ash citing reason of urgent requirement of funds for smooth and uninterrupted operation of RPL plant. Pursuant to said request, MSEDCL has released an ad hoc payment of ₹44.73 crore on **27.04.2026** against your total claimed amount of ₹252.39 crore towards fly ash transportation. The payment has been made through **RTGS on 27.04.2026 bearing UTR/Reference No. RTGSINW-0105342271.**

It is expressly clarified that the above payment is being released strictly on an ad hoc basis, without prejudice to MSEDCL's rights and contentions in the matter. Needless to add, the said payment shall be subject to the final outcome of Civil Appeal No. 10046 of 2025 before the Hon'ble Supreme Court and Case No. 171 AD of 2025 before the Hon'ble MERC, and shall be liable to be refunded along with applicable LPS in the event the decisions are in favour of MSEDCL.

Accordingly, the disbursement of the aforesaid amount shall not be construed as an admission of liability and shall be subject to adjustment/reconciliation based on the final adjudication in the above-mentioned matters. MSEDCL has already informed its view on said claim vide letter under reference (1). Without accepting the liability towards the Fly Ash claim raised by RPL, MSEDCL has provisionally considered this amount of Rs. 44.73 Crs based on the same principle on which the Hon'ble MERC has allowed the claim of M/s Adani Power Ltd in Case 84 MP/2023 and MSEDCL is paying said Fly Ash claims of Adani Power under protest. The said impugned order of MERC has already been challenged by MSEDCL before APTEL, which is presently pending adjudication. Accordingly, details of claims towards Fly Ash Transportation which have been considered by MSEDCL based on said order of MERC, are attached herewith.

This is issued without prejudice to all rights and remedies available to us under the applicable law and contractual provisions.


Chief Engineer (Power Purchase),

MSEDCL

Encl.---

MSEDCL's Computations of Fly Ash Based on
points mentioned vide letter under reference 2.